

 Internal Case Management System Worksheet - Case Closing					Top Allegation MISSING PROPERTY - FROM PERSON - PRISONER		Group G22-GROUP 22 Date of This Report 10/10/2018	
Date Reported 06/28/2018	Date Assigned 06/28/2018	IAB Log No. 2018-25146	Case No. (G22) C-2018-254	Folder Type CORRUPTION	Preliminary Case Type CORRUPTION	Follow-Up No.	Worksheet Tracking No. 3240712	

Topic/Subject (Case Closing) CASE CLOSING - UNSUBSTANTIATED	Activity Date 10/10/2018	Activity Time 00:00
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case#:
C2018-0254

Log#:
2018-25146

Subject Officer(s)

Capt. Besemah Rogers, Tax #937419, PSA 1
Date of Appointment: 1/10/2005
Probation: No
Current Duty Status: Active

PO Malachi McKenith, Tax #945983, 40 Precinct
Date of Appointment: 1/7/2008
Probation: No
Current Duty Status: Active

Unidentified UMOS

Witnesses:

[REDACTED]

Date Case Received:
June 28, 2018

Date of Occurrence:
December 27, 2016

Administrative Statute of Limitations Expires:
June 27, 2018
SOL expired prior to receiving case.

Classification:
C2

Investigator:
Sergeant Kareem Francis, Tax #936612

Team Leader:
Lieutenant Michael Inserra, Tax #922535

Overall Case Disposition:
Unsubstantiated

Details:
Log # 2018-25146

The command center received a CCRB 201804984 spinoff. The complainant walked into the CCRB office to make a complainant

against 109 Precinct officers, when he also informed them of the following incident. On 12/27/2016, [REDACTED] received a phone call from Officer McKenith, 40 Precinct who informed him to leave [REDACTED] alone. [REDACTED] stated that the S/O was rude and cursed at him several times, while on the phone. [REDACTED] decided to go to the 40th Precinct to file a false report on [REDACTED], at which point he observed [REDACTED] in the station house. He informed an Officer who was standing outside in regards to [REDACTED], when the officer told him to wait while he investigate. [REDACTED] stated after 5 minutes several officers in uniform came out of the precinct picked him up and slammed him against the wall. [REDACTED] stated while the officers were handcuffing him, Officer McKenith approached him and stated that he was a □ stupid mother fucker for coming here. □ [REDACTED] stated while he was in front of the desk, he realized he had 10 USC, which he told the S/O and the Lt. on the desk. He stated the S/O and Lt. ignored him. [REDACTED] stated he felt humiliated while being stripped search in the bathroom, while the S/O threaten to beat him up numerous times.

Identification and Interview of Complainant:

The complainant, [REDACTED], is known to the Department under NYSID# [REDACTED], who resides at [REDACTED] [REDACTED] was interviewed by investigators.

[REDACTED] stated in 2016 he met [REDACTED] at her place of employment, [REDACTED]. He stated that they exchanged numbers and would text each other periodically. [REDACTED] stated around October 2016, while walking in the Gateway Mall, he tried to engage [REDACTED] but she ignored him. He further stated that they had a verbal dispute which he called her a little boy. [REDACTED] stated in December of 2016, he was home when he received call from a blocked phone number. He stated that an officer from the 40 Precinct told him to leave [REDACTED] alone. He further stated that the officer was extremely rude and cursed at him. [REDACTED] stated that he couldn't recall the name of the officer but he remembers the name had the letters MC in it. [REDACTED] stated that he hung up with the officer and called his [REDACTED] who is employed by [REDACTED] to obtain advice.

[REDACTED] stated that he followed the advice of his cousin and went to the 40th precinct to file a complaint against [REDACTED] [REDACTED] stated he approached an unknown officer outside the command and informed him that he wanted to make a complaint against [REDACTED] who he witnessed in the command. The officer informed him to remain outside so he could find out what's going on. Approximately two minutes later, [REDACTED] stated 10 officers came outside from the command, surrounded him, and placed him against the wall. At which point in time, one of the officers, a male black in civilian clothes, wearing a cast on his foot and a skull cap, told him that he was one of the □ dumbest motherfucker to come to the precinct □ and told him that he was under arrest. [REDACTED] stated that when he was escorted in front of the desk, the male black officer was going through his wallet. [REDACTED] stated that he was trying to explain the reason he showed up to the precinct to the female black Lieutenant at the desk. [REDACTED] stated at some point, Officer McKenith requested that he sign his property voucher which [REDACTED] noticed that there was no money accounted for. [REDACTED] informs the S/O who in turn tells the Lieutenant that [REDACTED] was complaining about missing money. [REDACTED] stated that the Lieutenant told the S/O don't worry about it. At which point, he was escorted to the holding cell. [REDACTED] stated after a period of time, Officer McKenith took him out of the holding cell and brought him into the bathroom.

The S/O told [REDACTED] to take all of his clothing off. He further stated that this was done in front of a male, white, rookie officer in uniform. [REDACTED] stated that Officer McKenith told him that if he didn't get undressed that he would be □ f □ him up. Furthermore, he stated that more unknown officers joined in the verbal taunting of [REDACTED] while this was being done. [REDACTED] stated that he was completely naked in the bathroom when this occurred. [REDACTED] reported that his clothing was searched when this happened but he was never physically touched. He was subsequently told to get dressed and was taken back to the cell. [REDACTED] stated that he received his property (wallet, keys and cell phone) back after he was released from Central Booking. [REDACTED] reported that he never received his \$10 USC back. [REDACTED] reported that he is making this complaint now because he had just made another complaint to CCRB and told the investigator about this incident. [REDACTED] stated that the charges from this incident were dropped after 6 months, as long as he didn't get in trouble again. [REDACTED] stated that he is on disability and sees a therapist.

On August 30, 2018, a second interview was conducted on [REDACTED], which he reiterated his last interview. [REDACTED] stated that he had \$14 USC in his wallet. I informed him that the prisoner pedigree sheet stated that he only had \$5 USC, which he stated that he knew he had more money than that. He stated while in the cells, the S/O and a male white officer in uniform conducted a stripped search on him in the bathroom. He stated the male white officer was nice, but the S/O was very rude. [REDACTED] further stated that the S/O stated in a threatening manner "You're lucky I got this foot, because I'll bust your ass." S/O told [REDACTED] that he would "F him up if he doesn't get undress". He stated that he couldn't identify any of the officers that approached him outside the precinct or the officers that were present while he was getting stripped searched. He further stated that he did not observe the S/O take his 10 dollars, he just knew he had it in his wallet. I provided a photo array to [REDACTED] to ascertain if he could identify the officer that was present with the S/O while he was being stripped searched. [REDACTED] could not identify the officer in the photo array.

A background check of [REDACTED] revealed that he has four prior arrests including this current log. I also conducted an ICMS that revealed no prior complaints. However, he [REDACTED] has five (5) CCRB and three (3) IAPRO complaints.

Identification of the Witness(es):

The witness, [REDACTED] (victim) stated that she first met [REDACTED] at her employment, [REDACTED] in November of 2016. [REDACTED] stated that one day she was leaving work when she received a phone call from [REDACTED] stating that he was on his way to her job. [REDACTED] stated that she told him that she had already left and was on her way home. She stated that [REDACTED] texted her again and told her to go back to her job to meet him. She stated that [REDACTED] eventually became offended when she refused to meet him. She stated that [REDACTED] wanted to bring her flowers and express to

her that he liked her. She stated that she then apologized to him but he continued to become angry and started to insult her by saying that she was rude, calling her a "bitch" and stating that he should have known better because she looks like a boy. She stated that he continued to text her rude messages and she eventually blocked him which she assumed was the end of their interaction. She stated that the time he came into the store was the only interaction she had with him. Eventually, she stated that he started calling her HR department at her job and telling her co-workers that she was harassing him. One of the employees pulled her to the side and informed her that a customer keeps calling the store saying that you're calling him nonstop and sending him rude text messages which prompted her to file a report.

On December 27, 2016, [REDACTED] walked into the 40 Precinct to make a police report in regards to an hit and run. While in the police station, her friend [REDACTED] asked her if she heard from [REDACTED] because her friend knew that he was harassing her. She stated the officer overheard the conversation and decided to call [REDACTED]. She stated that she was present when the officer obtained [REDACTED] number from her cell phone. Officer McKenith called and told [REDACTED] to "leave her alone". She stated that no use of profanity or disrespect was used by the officer but [REDACTED] did get angry.

She stated that [REDACTED] decided to show up at the precinct acting rowdy and demanded to see the officer that called him. She stated that 10 officers did not go out to address [REDACTED] except for Officer McKenith who approached and arrested [REDACTED]. She did state that when he first came bursting into the precinct screaming about the officer that was on the phone with him, three officers surrounded him until he was calm and then they resumed what they were doing. She stated that she did not hear him mention anything about missing money.

The witness, [REDACTED] stated Officer McKenith was assisting them with a report when [REDACTED] decided to inform the S/O that a man by the name of [REDACTED] has been stalking and harassing her through text messages. [REDACTED] stated that [REDACTED] asked [REDACTED] that he needed her to help him decorate his apartment. [REDACTED] stated that [REDACTED] was not interested in him but [REDACTED] thought they were starting a relationship. [REDACTED] stated that [REDACTED] called [REDACTED] the day before Christmas Eve and told her that "he was going to get her." [REDACTED] stated they informed PO McKenith about the incident, which PO McKenith told them that he will prepare a report for her. Officer McKenith told them that he was going to call [REDACTED] and tell him to leave [REDACTED] alone.

[REDACTED] stated that she overheard Officer McKenith telling [REDACTED] "This is Officer McKenith from the Police Department, this is not a game, you need to leave [REDACTED] alone." [REDACTED] informed Officer McKenith that he has a cousin who is a Police Officer. Officer McKenith told [REDACTED] that it doesn't matter if you have a cousin who is an officer and you should leave [REDACTED] alone. Minutes later, [REDACTED] arrived at the precinct being very violent and agitated. [REDACTED] stated that they were in a small office with the door partially closed, so she didn't have a chance to see everything that occurred. She further stated that she never saw any officers search the complainant.

Canvass:

A canvass was conducted to ascertain if there were any surveillance video at the 40 Precinct which resulted in negative results.

Identification of Subject Officer:

Police Officer Malichi McKenith was identified by the complainant during a photo array. [REDACTED] stated Officer McKenith had a cast/boot on his foot when he was arrested.

Captain Besemah Rogers was identified as the female Lieutenant at the desk from the prisoner pedigree sheet and roll call.

Review of Arrest & 61 Report:

A review of Arrest report # [REDACTED] and complaint report [REDACTED], revealed the following: [REDACTED]

Command Log:

A review of command log revealed [REDACTED] entered the precinct at 1830 hours. He was charged with [REDACTED] and the debt funds were \$5 that was accounted for and returned.

Prisoner Pedigree Card:

A review of the prisoner pedigree card pertaining to c/v, [REDACTED] revealed he was arrested at 1830 hours with funds of \$5 USC.

PETS:

A review of PETS revealed invoice # [REDACTED] contained a black iPhone 7, black iPhone 7 cell phone case, white iPhone charger cord, black lemar external charger juice pack, and three white metal keys on a key chain.

Aided Report:

An Aided query was conducted which revealed [REDACTED] had two incidents which he was a victim of a crime and there were no EDP history listed.

Roll Call:

A review of the roll call revealed Lt. Rodgers was assigned as the Platoon Commander and PO McKenith was assigned as the TS Operator.

Memobook:

A review of PO McKenith's activity log revealed accurate/complete entries with no discrepancies. PO McKenith documented that he arrested [REDACTED] at the station house.

Computer and Related Background Checks:

IAPro/ICIS/CCRB/CPI:

A background check was conducted on Captain Besemah Rogers in IAPro, ICMS, CCRB, and CPI which revealed that she was appointed on January 10, 2005 and is currently assigned to PSA 1. I revealed Captain Rogers has one prior failed to notify allegation which was deemed substantiated. S/O misplaced her firearm and notified her Commanding Officer five (5) hours later.

A background check was conducted on Police Officer Malachi McKenith in IAPro, ICMS, CCRB, and CPI which revealed that he was appointed on January 7, 2008 and is currently assigned to the 40 Precinct. PO McKenith has one similar allegation of Missing Property which were closed as Unsubstantiated.

A background check was conducted on witness, [REDACTED] DOB [REDACTED], utilizing DAS, ICMS, IAPRO, and CCRB which revealed no information of value.

Conferrals Conducted:

A conferral was conducted with Sgt. Tim Everoski, Medical Division who informed us that PO Malachi B. McKenith tax#945983 was limited from 12/1/2016 through 1/10/2017, restricted 1/10/2017 through 5/9/2017 and full duty from 5/9/2017 through current. Sgt. Everoski stated that he is not able to view what he was limited for due to HIPPA Laws.

A conferral with Gilberto Castro, IAB Intel in regards to RFI #18-0775 stated PO McKenith is very good when dealing with the community, especially with children. However, S/O has been known to escalate situations when dealing with perps. S/O can be very loud guy. MOS in the Precinct call him the [REDACTED] EDP Cop.

A conferral with Det. Guevarra-Franics, Intel IAB stated in regards to RFI #775, PO McKenith has [REDACTED] a very hyper personality. [REDACTED] S/O does his work quick to pick up jobs and is described as a very active cop. Agent stated that S/O interacts well with the community. Most people in the community know him and respect him. Agent stated that the S/O had a leg brace or surgical boot a while back but is unable to recall the exact date. Agent had no knowledge of the allegation alleged.

A conferral with Det. Checa, Intel IAB stated in regards to RFI #18-775, PO McKenith is well like by his peers and supervisors. He is known as a joker and is considered funny and likes to play around with his co-workers. Agent stated when it comes to his duties as a Police Officer, he is described as professional. He is sometimes called an EDP wh isperer because he is able to gain compliance verbally and without force. In the event he has to use force, he uses only the force that [REDACTED]s required in the situation. He can come off as strict when interacting with the public depending on the situation/incident.

A conferral with Ilya Kharkover, Supervisor, Public Integrity Bureau was conducted in regards to obtaining if [REDACTED] order of protection against him is still valid. She informed me that [REDACTED] OOP expired on 10-19-17. She also informed me that he [REDACTED]

A conferral with [REDACTED] IAB, Town of East Hampton PD was conducted in regards to [REDACTED]. I informed the Lt. that [REDACTED] cousin named [REDACTED] was [REDACTED]. [REDACTED] also informed the arresting officer that he was getting advice from his cousin who is a Police Officer and provided [REDACTED] business card. [REDACTED] informed me that he will notify his Captain about the incident.

A conferral with Chief Omer Wiczky, Public Integrity Bureau in regards to obtaining a waiver to conduct PG hearings for the subject officers were approved.

A conferral with Lt. Inserra, Team Leader was conducting in regards to interviewing Capt. Besemah Rogers. During Officer McKenith's PG hearing, he stated [REDACTED] did not inform Lt. Rogers or him that he was missing \$10 USC. He also stated that he never conducted a strip search on [REDACTED]. We determined not to conduct a PG hearing on Capt. Rogers since it will only illicit a denial for the allegations of Fail to Notify-IAB and Other Dept Rules/Procedures Violation (fail to document strip search in the command log).

Other Information of Investigative Value:

IT Test:

A review of PO McKenith's IT test revealed on 12/12/12 - Random test by Group 52 - Procedural Failure with QAD Test- S/O took a report for Grand Larceny, QAD couldn't locate the 61 in the database. Group 52 closed their case as Unsubstantiated. They revealed PO McKenith did in fact prepare a Grand Larceny complaint report in regards to the IT test.

On 5/9/16 □ Group 52 conducted a random test for flaking. S/O pass the test.

Review of CCRB CASE:

A review of the CCRB case revealed ██████ told the S/O that he was missing 10 USC. At that point in time, the Lieutenant told the S/O don't worry about it. ██████ stated while being escorted to the cells, the S/O told him he shouldn't have disrespected him over the phone. ██████ identified PO McKenith as the arresting officer.

I revealed CCRB didn't investigate any of the allegations that were referred to IAB. After conferring with IAB Assessments, it was determined that all FADO allegations in the CCRB case were removed and replaced with equivalent NON FADO NYPD allegations. Below are the following allegations that were changed:

- FADO - Abuse - Strip Searched = NYPD - Disputed Search of a Person
- FADO - Threat of Force = NYPD - Force
- FADO - Discourtesy- Word = NYPD - Other Dept Rules/Procedures Violation
- FADO - Abuse -Sexual Misconduct = NYPD - Sexual Motivated-Harassment-Verbal
- FADO - Threat to Arrest = NYPD - Threaten to Arrest

Review of CCRB #20180417:

A review of CCRB #20180417 in regards to ██████ FADO allegation against officers from the 109 Precinct. I revealed ██████ has a valid OOP against his neighbor, ██████. ██████ was outside the building having a verbal dispute with her. When ██████ intervened and told her ██████ to call the police. ██████ told ██████ to mind his fucking business. At that point in time, ██████ called 911 to have ██████ arrested for violating the OOP.

Programmatic Review:

It was determined that this case does not require a programmatic review.

Patrol Guide 206-13 Hearings:

INTERVIEW OF PO MALACHI MCKENITH

On October 2, 2018, PO Malachi McKenith was interviewed and stated that he was working on December 27, 2016 when a complainant by the name of ██████ walked into the precinct to make a report for ██████. PO McKenith stated that he was assigned as the T/S operator since he was on restricted duty for a foot injury. ██████ informed Officer McKenith that ██████ called her numerous times. She further stated that ██████ threatened to get her fired from her job, since she was avoiding him. PO McKenith stated that ██████ was in distress and afraid of ██████. At which point in time, Officer McKenith called ██████ and informed him that there was a report against him for Aggravated Harassment and he needs to stop contacting ██████. He further stated that he informed ██████ not to show up at the precinct or he will be arrested. PO McKenith stated moments later, ██████ showed up to the precinct, at which point he was arrested. PO McKenith stated ██████ and her friend stayed in the 124 room while he dealt with ██████. PO McKenith stated while he was on the phone with ██████ he was never rude or cursed at him.

Officer McKenith stated when ██████ arrived at the precinct, he walked outside and apprehended him without any assistance. PO McKenith stated that ██████ never complained about any injuries during the time he was in custody. PO McKenith further stated that he escorted ██████ to the desk, where he proceeded to search him. PO McKenith stated that he only recovered \$5 USC from ██████, which was documented on the Prisoner pedigree sheet. PO McKenith stated at no point in time, did ██████ inform Lt. Rogers or him that he had \$10 USC in his possession. He stated that he does not recall telling ██████ "he was not a thief". He also stated that he did not recall Lt. Rogers telling him not to worry about the money. PO McKenith stated after he completed his search of ██████ at the desk, he proceeded to escort him to the holding cell. PO McKenith informed us that he was the only officer who searched ██████ escorted him to the desk and the holding cell.

He also stated that he never conducted a strip search of ██████. PO McKenith further stated that there was no need to conduct a strip search and he never conducted one in his career with the Department. I informed Officer McKenith that ██████ stated that he told him to undress, and cough while he squats, which PO McKenith denied. PO McKenith stated ██████ was very condescending. He further stated ██████ told him that he has a family member who is a Sergeant. PO McKenith stated that he called the Sergeant who is employed by an outside agency in regards to ██████ arrest. The Sergeant informed Officer McKenith that ██████ is a friend not a relative. PO McKenith informed us that he normally will have a defendant make a phone call to let a relative know that their arrested. PO McKenith further stated that the Sergeant didn't ask him for any favors nor did he give ██████ any favors.

RE-INTERVIEWED PO MALACHI MCKENITH

Officer McKenith stated that he arrested ██████ on December 27, 2016 for ██████. He further stated that he did in fact prepare a PETS voucher # ██████ for ██████ which contained a black Iphone 7. He stated that he doesn't

recall recovering the cell phone when he apprehended [REDACTED] Officer McKenith stated that he had no knowledge of [REDACTED] was recording his interaction with him, in or outside the precinct. He further stated that he didn't delete any recordings from [REDACTED] phone and had no knowledge of [REDACTED] passcode for his Iphone.

Supervisory Deficiencies:
N/A

Conclusion:

Based on the information I have obtained during this investigation, it was determined that the allegation of Fail to Notify-IAB against Captain Rogers and Officer McKenith will be closed as Unsubstantiated, due to the fact the I/O could not prove or disprove the allegation. During Officer McKenith's PG hearing, he stated [REDACTED] was never strip searched in his custody. Therefore, the allegation of DRV Other Dept Rules/Procedures Violation (fail to document strip search in the command log) against Captain Rogers will be closed as Unsubstantiated. The c/v stated that he was sexually humiliated while being strip searched in the 40 Precinct. However, after interviewing the S/O, it was determined that the allegation of Sexually Motivated - Harassment -Verbal against Officer McKenith will be closed as Unsubstantiated. The allegations of Disputed Search of a Person- Enforcement Action Taken-Arrest/Summons, and Missing Property-from Person-Prisoner against Officer McKenith will be closed as Unsubstantiated due to the I/O could not prove or disprove the allegation.

A conferral with Ilya Kharkover, Public Integrity Bureau informed me that [REDACTED] Therefore, the allegation of Disputed Arrest against Officer McKenith will be closed as Exonerated. The allegations of Use of Force □Level 1, Force- Physical Force, Other Dept Rules/Procedures Violation (S/O discourteous to c/v) against Officer McKenith will be closed as Unsubstantiated due to the I/O could not prove or disprove the allegation. [REDACTED] stated he had a recording of the encounter with Officer McKenith, which he realized was deleted when he was released from central bookings. The allegation of DRV Other Dept Rules/Procedures (removing recordings from c/v's personal phone) against Officer McKenith will be closed as Unsubstantiated due to the I/O could not prove or disprove the allegation. Officer McKenith arrested [REDACTED] on an open complaint report for [REDACTED], after he informed him not to show up at the command. Therefore, the allegation of Threaten to Arrest will be closed as Exonerated.

The allegation of Force-Physical Force and Sexually Motivated-Harassment-Verbal against Unknown UMOS will also be closed as Unsubstantiated due to the I/O could not prove or disprove the allegation. It should be noted that the statue of limitation has expired.

Subjects Involved						
Name		Status	Sex	Race	Dob	
		UNKNOWN UNI MEM OF SERVICE				
Allegations						
1	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 10/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/29/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FORCE- PHYSICAL FORCE. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. THE ABOVE ALLEGATION REPLACED CCRB- FADO FORCE- PHYSICAL FORCE IN CASE #201804984. REFER TO WORKSHEET #70.				
2	Full Allegation Sexually Motivated - Harassment - Verbal	Classification Abuse of Dept Regulations	Allegation Index Sexually Motivated	Allegation Date 10/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/29/2018
		Comments THE C/V STATED THE S/O VERBALLY HARASSED HIM WHILE HE WAS BEING STRIP SEARCHED. THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF SEXUALLY MOTIVATED- HARASSMENT-VERBAL. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. IT SHOULD BE NOTED THAT CCRB DID NOT ADDRESS THIS ALLEGATIONIN CASE #201804984. REFER TO WORKSHEET #70.				
Name		Status	Sex	Race	Dob	
937419 BESEMAH ROGERS LT (040-040 PRECINCT)		UNIFORM MEMBER OF SERVICE	FEMALE	BLACK		
Allegations						
1	Full Allegation Fail to Notify - IAB	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 06/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments				

		THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FAIL TO NOTIFY-IAB. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
2	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/31/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments THE ALLEGATION OF OTHER DEPT RULES/PROCEDURES VIOLATION (FAILED TO DOCUMENT STRIP SEARCH IN THE COMMAND LOG)WILL BE CLOSED AS UNSUBSTANTIATED. DURING THE INVESTIGATION, IT WAS DETERMINED THAT THE S/O WAS THE DESK OFFICER FOR THE DAY IN QUESTION. HOWEVER, DURING OFFICER MCKENITH PG HEARING, HE STATED THAT HE DIDN'T CONDUCT A STRIP SEARCH ON THE DEFENDANT. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
Name 945983 MALACHI MCKENITH POM (040- 040 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race BLACK	Dob [REDACTED]	
Allegations						
1	Full Allegation Disputed Search of a Person - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 06/28/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF DISPUTED SEARCH OF A PERSON. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. THE AFOREMENTIONED ALLEGATION REPLACED CCRB ALLEGATION OF FADO-ABUSE-STRIP SEARCHED CASE #201804984.				
2	Full Allegation Use of Force - Level 1	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 06/28/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF USE OF FORCE- LEVEL 1. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
3	Full Allegation Missing Property - from Person - Prisoner	Classification MISSING PROPERTY	Allegation Index LARPRIS-From Prisoner	Allegation Date 06/28/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY-FROM PERSON-PRISONER. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
4	Full Allegation Disputed Arrest -	Classification Miscellaneous	Allegation Index O-Miscellaneous Other	Allegation Date 06/28/2018	Finding 01 - Exonerated	Finding Date 10/04/2018
		Comments [REDACTED]. THEREFORE THE ALLEGATION WILL BE CLOSED AS EXONERATED.				
5	Full Allegation Fail to Notify - IAB	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 06/28/2018	Finding 12 - Unsubstantiated	Finding Date 10/04/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FAIL TO NOTIFY-IAB. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
6	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/24/2018	Finding 12 - Unsubstantiated	Finding Date 10/24/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF DRV-OTHER DEPT RULES/PROCEDURE VIOLATION (S/O REMOVED RECORDINGS FROM THE C/S PERSONAL				

		PHONE). THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED.				
7	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 10/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/29/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF FORCE-PHYSICAL FORCE. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. THE ALLEGATION WAS REMOVED FROM FADO-FORCE-PHYSICAL FORCE DUE TO THE FACT, CCRB DID NOT INVESTIGATE THE ALLEGATION IN CASE #201804984. REFER TO WORKSHEET #70.				
8	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/29/2018
		Comments THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF OTHER DEPT RULES/PROCEDURES VIOLATION. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. THE ALLEGATION WAS REMOVED FROM FADO-DISOURTESY-WORD DUE TO THE FACT, CCRB DID NOT INVESTIGATE THE ALLEGATION IN CASE #201804984. REFER TO WORKSHEET #70.				
9	Full Allegation Sexually Motivated - Harassment - Verbal	Classification Abuse of Dept Regulations	Allegation Index Sexually Motivated	Allegation Date 10/29/2018	Finding 12 - Unsubstantiated	Finding Date 10/29/2018
		Comments THE C/V STATED THE S/O VERBALLY HARASSED HIM WHILE HE WAS BEING STRIP SEARCHED. THE I/O COULD NOT PROVE OR DISPROVE THE ALLEGATION OF SEXUALLY MOTIVATED- HARASSMENT-VERBAL. THEREFORE THE ALLEGATION WILL BE CLOSED AS UNSUBSTANTIATED. IT SHOULD BE NOTED THAT CCRB DID NOT ADDRESS THIS ALLEGATION IN CASE #201804984. REFER TO WORKSHEET #70.				
10	Full Allegation Threaten to - Arrest	Classification Abuse of Dept Regulations	Allegation Index Threaten	Allegation Date 10/29/2018	Finding 01 - Exonerated	Finding Date 10/29/2018
		Comments THE S/O ARRESTED THE C/V AT THE STATION HOUSE ON AN OPEN 61 FOR [REDACTED], AFTER HE TOLD THE C/V NOT TO SHOW UP AT THE PRECINCT. THEREFORE THE ALLEGATION OF THREATEN TO- ARREST WILL BE CLOSED AS EXONERATED. IT SHOULD BE NOTED THAT CCRB DID NOT ADDRESS THIS ALLEGATION IN CASE #201804984. REFER TO WORKSHEET #70.				

ATTACHMENT

1	 "LETTER TO C/V - [REDACTED]"
2	 "NOTIFICATION OF DISPOSITION FOR PO MCKENITH"

Reporting Officer:	Rank SDS	Name FRANCIS KAREEM	Tax Reg. No. 936612		Command G22-GROUP 22
Reviewing Supervisor:	Manner of Closing 9 - UNSUBSTANTIATED	Date Reviewed 11/05/2018	Date of Next Review	Name SHEA THOMAS	Supv. Tax No. 899848
Endorser:	Rank LT	Name INSERRA MICHAEL	Tax Reg. No. 922535	Command G22-GROUP 22	DateTime Reviewed 10/24/2018 20:02
	Comments ALL INVESTIGATIVE STEPS ARE COMPLETED AND FORWARD TO YOU FOR YOUR REVIEW AND APPROVAL.				

Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 10/29/2018 11:48	Status Rejected
	Comments CASE REVIEWED: #1- ADD APPROPRIATE FADO ALLEGATIONS THAT ARE PRESENTLY BEING INVESTIGATED BY CCRB. IN THE COMMENTS SECTION LIST THE CCRB CASE NUMBER ALONG WITH CCRB'S FINDING. (IF KNOWN)- THESE FINDINGS WILL BE I&I. #2- REGARDING ALLEGATIONS # (2&4) FOR PO MALACHI AS WELL AS FADO ALLEGATION FOR "UNKNOWN UMOs"- REMOVE THE FADO ALLEGATION & REPLACE IT WITH THE NON-FADO NYPD ALLEGATION EQUIVALENT. (KEEP UNSUBSTANTIATED FINDING)- REMEMBER WE INVESTIGATED THESE ALLEGATIONS IN ADDITION TO CCRB DOING THE SAME IN THEIR CASE. NOTE: ONLY CCRB INVESTIGATES FADO ALLEGATIONS, HOWEVER, WE CAN INVESTIGATE THE NYPD EQUIVALENT. (ONLY DIFFERENCE IS THAT IT DOES NOT CONTAIN THE WORD FADO IN THE ALLEGATION)					
Endorser:	Rank LT	Name INSERRA MICHAEL	Tax Reg. No. 922535	Command G22-GROUP 22	DateTime Reviewed 10/29/2018 15:19	Status Approved
	Comments REVIEWED AND APPROVED. ALL UPDATES WERE MADE AND FORWARD TO YOU FOR YOUR REVIEW AND APPROVAL.					
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 10/30/2018 10:55	Status Approved
	Comments CASE REVIEWED: ADDITIONAL STEPS REQUESTED HAVE BEEN COMPLETED.					
Endorser:	Rank INS	Name SHEA THOMAS	Tax Reg. No. 899848	Command Z01-ZONE 1	DateTime Reviewed 11/05/2018 14:49	Status Approved
	Comments APPROVE CLOSING.					